



## CHAPTER xvii.

An Act to extend the time for the compulsory purchase of lands for and completion of works authorised by the Bury and District Joint Water Board Act 1903. A.D. 1915.  
[9th June 1915.]

**W**HEREAS by the Bury and District Water (Transfer) Act 1900 the water undertaking of the mayor aldermen and burgesses of the county borough of Bury was transferred to the Bury and District Joint Water Board (in this Act called "the Board") consisting of representatives from the constituent authorities set forth in the said Act:

And whereas by the Bury and District Joint Water Board Act 1903 (hereinafter in this Act referred to as "the Act of 1903") the Board were empowered to construct the additional waterworks in the Act of 1903 described and in connection with such waterworks and their waterworks undertaking to purchase compulsorily the lands in the Act of 1903 described:

And whereas the works authorised by the Act of 1903 comprise three reservoirs to be called respectively the New Hall Reservoir the Scout Moor Reservoir and the Scout Moor High Level Reservoir and certain aqueducts tunnels conduits and lines of pipes in connection with such reservoirs:

And whereas by the Act of 1903 the periods within which the Board were to complete the construction of the works thereby authorised were limited in the case of the Scout Moor High Level Reservoir to five years from the date of the passing of the said Act and in the case of the New Hall Reservoir and the Scout Moor Reservoir to twelve years from such date:

[Ch. xvii.]      *Bury and District Joint Water*      [5 & 6 Geo. 5.]  
*Board Act, 1915.*

A.D. 1915.

And whereas by the Act of 1903 the period within which the Board were to exercise their compulsory powers for the purchase of the lands hereinbefore referred to was limited to seven years from the date of the passing of the said Act:

And whereas the Act of 1903 received the Royal Assent on the 14th day of August 1903:

And whereas by the Bury and District Joint Water Board Act 1908 (hereinafter in this Act referred to as "the Act of 1908") the period for the completion of the works authorised by the Act of 1903 was extended in the case of the Scout Moor High Level Reservoir to two years from the 14th day of August 1908 and in the case of the New Hall Reservoir and the Scout Moor Reservoir to twelve years from the said date:

And whereas by the Act of 1908 the period within which the Board were to exercise their compulsory powers for the purchase of the lands hereinbefore referred to was extended to seven years from the 14th day of August 1908:

And whereas the construction of the Scout Moor High Level Reservoir has been completed but no commencement has yet been made with the works in connection with the construction of the New Hall Reservoir or the Scout Moor Reservoir nor have the whole of the lands been acquired for the purposes of the Act of 1903:

And whereas it is expedient that the respective periods within which the New Hall Reservoir and the Scout Moor Reservoir and the works in connection therewith were to be completed and within which the Board were to exercise their compulsory powers for the purchase of the lands hereinbefore referred to as extended by the Act of 1908 should be further extended as in this Act provided:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

[5 & 6 GEO. 5.]     *Bury and District Joint Water*     [Ch. xvii.]  
                                         *Board Act, 1915.*

1. This Act may be cited as the Bury and District Joint Water Board Act 1915 and the Bury and District Joint Water Board Acts 1900 to 1908 and this Act may be cited together as the Bury and District Joint Water Board Acts 1900 to 1915.

A.D. 1915.

Short and  
collective  
titles.

2. The period limited by section 19 of the Act of 1903 as extended by section 2 of the Act of 1908 for the completion of the New Hall Reservoir and the Scout Moor Reservoir authorised by the Act of 1903 is hereby further extended to ten years from the fourteenth day of August one thousand nine hundred and twenty and the said section 19 of the Act of 1903 shall be read and have effect accordingly.

Extending  
period for  
completion  
of works.

3. The period limited by section 22 of the Act of 1903 as extended by section 3 of the Act of 1908 for the compulsory purchase of lands is hereby further extended to seven years from the fourteenth day of August one thousand nine hundred and fifteen and the said section 22 of the Act of 1903 shall be read and have effect accordingly.

Extending  
period for  
compulsory  
purchase  
of lands.

4.—(1) The Board shall erect fit up and maintain or provide—

Accommo-  
dation for  
workmen

(A) Such huts or buildings for the accommodation of the workmen employed in and about the construction of the works authorised by the Act of 1903;

employed on  
construction  
of works.

(B) Such hospital accommodation for the treatment of cases of sickness or accident among such workmen including accommodation for dealing with infectious diseases;

as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said works and shall provide and maintain proper and sufficient sanitary accommodation in connection with every such building and hospital.

(2) The Board shall pay all reasonable costs and expenses incurred in respect of the medical and surgical treatment of any workman employed on the construction of the said works who is treated in any hospital accommodation provided by them except in so far as such costs and expenses are payable under the provisions of the National Insurance Act 1911 or otherwise.

(3) The medical officer of health of the county council shall be entitled at any time to enter into and inspect and

A.D. 1915. — examine any accommodation afforded under this section in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

(4) The Board shall give such officer all facilities and information which he requires for the purpose of the performance of his duties including the right to enter upon the said works and any person obstructing such officer in the performance of his duty under this section shall be liable on summary conviction to a fine not exceeding forty shillings.

(5) If at any time it appears to the county council that the Board have failed to afford or maintain accommodation in accordance with subsection (1) of this section the Board shall afford and maintain such accommodation as the county council may require. Provided that if within fourteen days after the receipt of notice of any requirement of the county council under this subsection the Board give notice to the county council that they dispute the reasonableness of any such requirement the difference shall be determined by the Local Government Board on the application of either of the parties to the difference and the Local Government Board may make such requirements (if any) in variation of the requirements of the county council as they may think fit.

(6) If the Board fail to afford and maintain accommodation in accordance with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and to a further daily penalty not exceeding five pounds for every day on which the offence is continued after conviction and such penalties may be recovered by the county council.

(7) Any expenses incurred by the county council in carrying out the provisions of this section shall be repaid to the county council by the Board and shall be recoverable as a debt due from the Board to the county council.

(8) The Board shall pay to the Local Government Board any expenses incurred by that Board under this section including a sum not exceeding three guineas a day for the services of any inspector in connection with any local inquiry or investigation which they may consider necessary in the exercise of their powers under subsection (5) of this section and the expenses of any witnesses summoned by the inspector.

5. The costs charges and expenses preliminary to and of      A.D. 1915.  
and incidental to the preparing applying for obtaining and      Costs of Act.  
passing of this Act as taxed by the taxing officer of the House  
of Lords or of the House of Commons shall be paid by the  
Board and they are hereby empowered to borrow the amount of  
such costs charges and expenses and the amount which may be  
so borrowed shall be deemed to be principal moneys within the  
meaning of the Act of 1903 and the prescribed period for the  
payment off of such money shall be five years from the date  
of the passing of this Act.

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FOR  
FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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